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Chapter 30: A Brief History of Promises

Abstract

Promise enables people to organize their lives around actions that have not yet been performed, and lets present choices bind the future. This chapter sets out from the confluence of Volume IV—in the scene of academic publishing, a paper's having been published does not mean that knowledge has increased; in the scene of financial models, a model's being adopted does not mean that its outputs are correct, and a transaction's having been executed does not mean that responsibility has been checked; in the scene of algorithmic platforms and AI, participation does not mean consent—to ask a question that runs through the chapters of this volume: when people arrange the future on the strength of some assurance, who is qualified to define the content of the assurance, who can interpret change, and who bears the consequences when it fails.

The historical part proceeds along two parallel lines, Eastern and Western. The Chinese line sets out from the graded oath apparatuses of the Book of Rites and the stacked-apparatus diagnosis of "Tan Gong II": the Analects establishes trustworthiness as the transmission component, the Laozi warns that light promises breed little trust, and the promise of Ji Bu was mortgaged on his person; Mencius held that a person versed in the underlying patterns of things need not keep every word nor carry every deed through—judgment looks only to whether it accords with rightness—and once this power of reservation is held unilaterally by power, "where rightness lies" degenerates into a license to welch; Machiavelli wrote the same logic down in The Prince. The Western line sets out from Hume's explanation of the convention and Hobbes's hardware of enforcement, passes through

Nietzsche's question about how the capacity to promise is formed, and arrives at the Fried–Atiyah dispute over promissory obligation and Arendt's analysis of mutual promises. The two lines do not line up as a single evolution from personal credit toward algorithmic substitution; they meet on the same set of questions: the apparatus can take over the execution of promises, while its efficacy always depends on conditions outside the apparatus—conditions that Xunzi names the cheng, the integrity, that is "the root of government affairs."

Running parallel to the history of promises is the main history of persuasion. Aristotle acknowledges that rhetoric omits premises on the audience's behalf; Han Fei wrote down the art of reading men in the stratified court; Pascal believed the art of pleasing to be beyond attainment; the Tuan commentary of the Dui hexagram marks joy as a mobilizing force; Liu Xie gathered "to persuade is to please" into literary theory; and Smith distinguished the two boundaries of persuasion; Bernoulli went further and set a measure for the persuasive—he defined probability as a degree of certainty, and what is weighed is the argument, not the pleasing. Persuasion borrows the form of the promise to capture attention without accepting the promise's accountability structure; in the age of metrics, what is being weighed is no longer the argument but the results of pleasing, and the two lines cross here—an effect reading serves at once as an argument and as proof of fulfillment.

On this basis, the chapter distinguishes the making of promises, the recognition of performance, the interpretation of conditions, and the bearing of consequences, and takes Knight's distinction between measurable uncertainty and unmeasurable uncertainty as its coordinate to examine how metrics and artificial intelligence (AI) enter these links in the three scenes of academia, finance, and platforms. The core question is not whether the apparatus can take over more business, but who can determine the meaning of the promise, change the conditions of performance, and make their own interpretation bind others. The reservation of judgment can be neither a license for casual bad faith nor merely a confirm button still present on the interface; withdrawing from an arrangement cannot erase the consequences that have already occurred, and yet this does not rule out the possibility of rebuilding the conditions of a common life.

Keywords

promise; persuasion; intertemporal obligation; reservation of judgment; power of interpretation; accountability structure; metric-based evaluation; artificial intelligence (AI)

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§1 Definition: Intertemporal Obligation and the Qualification for Judgment

§1.1 How Actions That Have Not Yet Happened Enter Present Life

In Book III, Part II, Section V of the Treatise, where Hume discusses the obligation of promises, he proposes a scenario of mutual aid. Two people's grain ripens one after the other; helping each other benefits both, but the one who labors first cannot rely on this common interest alone to be certain that the other will come to help tomorrow.

> Your corn is ripe to-day; mine will be so tomorrow. It is profitable for us both, that I should labour with you to-day, and that you should aid me to-morrow. (Hume, 2016)

In the situation Hume describes, the two lack the trust and the safeguards needed to support mutual aid; each labors alone, and both lose part of their harvest. From this he concludes that stability in the possession of property

and the rules of immediate exchange do not yet suffice to organize all cooperation. Many services cannot be completed simultaneously; people need a way to make an action not yet performed the basis on which another person acts now. The convention of promising answers precisely this difficulty across time (Hume, 2016).

This does not mean that the promise first turns the future into a known fact. Tomorrow's labor has not yet happened, and the weather and the state of people's bodies have not stopped changing. What the promise changes first is the relation between the two parties: one no longer merely predicts that the other will come to help, but now has grounds to demand an account and performance; the other can no longer treat a change of mind as a matter concerning only himself. The future remains uncertain, but the two have established an obligation on which they can act and by which they can demand performance.

The promise thereby has a double effect. It restricts the promisor's later arbitrary choices, and it widens the range of things the two parties can undertake together. Without the first restriction, the second widening would have nothing to rest on. The promise therefore cannot be assigned from the outset to the enemy camp of judgment. It sometimes frees people from ceaselessly guessing at the other's passing wishes, and makes longer-term judgment and cooperation possible.

§1.2 Johnson 1759: Arousing Attention and Selling Fame

The advertising of the print age brought the question of the qualification to judge into a new setting: whoever could pay for the space could publicly declare himself worth noticing. In No. 40 of The Idler (1759), Johnson linked the proliferation of advertisements to the magnification of promises:

> Advertisements are now so numerous that they are very negligently perused, and it is, therefore, become necessary to gain attention by magnificence of promises, and by eloquence sometimes sublime and sometimes pathetick. (Johnson, 1759)

This passage describes a relation of competition. The more advertisements there are, the more easily ordinary expression is passed over, and so advertisers intensify their promises and their rhetoric to compete for public attention. But Johnson also records another strategy: a tradesman can exploit the public's preference for plain sincerity and win trust through a measure of self-restraint. Boastfulness and modesty can both become attractive modes of expression; tone alone, in either direction, cannot establish whether the content is reliable.

He further asks whether advertising excessively manipulates the passions, and demands that this art submit to the public interest. The essay is a satire on advertising, not a documentary proof that the promise lost its responsible subject from that moment on. The question it opens is more specific: that an expression succeeds in gaining public attention, and that its author deserves public trust, are two things that must be established separately (Johnson, 1759).

The essay also contains a further observation directly relevant to the qualification for judgment. Johnson writes:

> Every man that advertises his own excellence should write with some consciousness of a character which dares to call the attention of the publick. He should remember that his name is to stand in the same paper with those of the king of Prussia and the emperour of Germany, and endeavour to make himself worthy of such association. (Johnson, 1759)

Before the age of advertising, who was qualified to judge what deserved attention was settled largely by institutional intermediaries such as monarchs, the church, and the court. Once advertising appeared, anyone who could

pay for space could set his name beside a king's—tailors and bodice-makers purchased space and proclaimed themselves "worth noticing." Johnson's question about this is:

> When these collections shall be read in another century, how will numberless contradictions be reconciled? and how shall fame be possibly distributed among the tailors and bodice-makers of the present age? (Johnson, 1759)

Purchasing power makes it possible to declare oneself worth noticing; it does not make one worthy of being noticed. Over the following two and a half centuries, the dominant power over the allocation of attention gradually shifted from institutional intermediaries such as monarchs, the church, and the court to metrics and algorithms. The economic nature of this shift was named by Lanham: when information is no longer scarce but the human attention needed to make sense of it is, the new regime is better thought of as an economics of attention (Lanham, 2006)—

> But information is not in short supply in the new information economy. We're drowning in it. What we lack is the human attention needed to make sense of it all. It will be easier to find our place in the new regime if we think of it as an economics of attention. Attention is the commodity in short supply. (Lanham, 2006)

The attention economy is not a contemporary invention. In *The Electronic Word* Lanham reminds us that the West has long possessed a discipline studying how human attention is created and allocated—the art of persuasion the Greeks called rhetoric (Lanham, 1993):

> We have in the West a venerable tradition of studying how human attention is created and allocated: the 'art of persuasion' which the Greeks called rhetoric. A better definition of rhetoric, in fact, might be 'the economics of human attention-structures,' for whenever we 'persuade' someone, we do so by getting that person to 'look at things from our point of view,' share our attention-structure. (Lanham, 1993)

With this, the line of attention in §1.2 and the line of persuasion in §1.3 join into one. But who in fact distributes attention, and whose judgment carries legitimacy, remain two separate questions; what this chapter examines is how these arrangements allocate judgment, not the presumption that the qualification to judge has completed its transfer along a single line.

§1.3 Rhetoric's Concession: The Main History of Persuasion

The promise is not the only expression on the strength of which others act. Persuasion—attempts to change others' views or actions—has a technical history of its own, one two thousand years older than print advertising. The reason this line runs parallel to the promise line in this chapter emerges only where the two converge: among the most effective ammunition of persuasion is, precisely, the form of the promise.

In the *Rhetoric*, Aristotle defines rhetoric as the faculty of observing in any given case the available means of persuasion; this chapter calls the audience condition that the art confronts rhetoric's concession. The citizens of the polis are nominally equal, but most cannot follow a complete chain of reasoning, and public deliberation cannot wait until everyone has finished their training. He says:

> The duty of rhetoric is to deal with such matters as we deliberate upon without arts or systems to guide us, in the hearing of persons who cannot take in at a glance a complicated argument, or follow

a long chain of reasoning. (Aristotle, 1941)

The technical form is the enthymeme: the argument is reduced to a few premises, and what everyone knows is simply omitted—

> The Enthymeme must consist of few propositions, fewer often than those which make up the normal syllogism. For if any of these propositions is a familiar fact, there is no need even to mention it; the hearer adds it himself. (Aristotle, 1941)

The omitted premise is supplied by the listener himself—and this arrangement gives persuasion a certain appearance of being judged: the listener has something to do, but what he does takes place inside premises designed by someone else. Aristotle's honesty lies in stating the boundary condition of the technique as well: before some audiences not even the possession of the exactest knowledge will make it easy for what we say to produce conviction, for argument based on knowledge implies instruction, and there are people whom one cannot instruct (Aristotle, 1941). Rhetoric does not improve the audience's judgment; it converts the argument, on the audience's behalf, into short premises that can be followed—the full argument costs too much, and most occasions cannot afford it. This is the first principle of persuasion.

The same concession takes another form within a structure of rank. Han Fei's "Difficulties in the Way of Persuasion" opens:

> As a whole, the difficulties in the way of persuasion lie in my knowing the heart of the persuaded in order thereby to fit my wording into it. If the persuaded strives after high fame while you persuade him of big profit, you will be considered low-bred, accorded mean treatment, and shunned from afar. (*Han Feizi*, "Difficulties in the Way of Persuasion"; Liao, 1939)

The difficulty of persuasion lies not in eloquence or intellect, but in reading precisely the mind of the person addressed and matching one's words to it—a mismatch of object (speaking of profit to one who seeks fame, or of fame to one who seeks profit) leads to estrangement. The chapter closes with the image of the dragon: below its throat are inverted scales a foot across, and "any persuader able to avoid touching the inverted scales of the lord of men must be very near to the mastery of the art of persuasion" (*Han Feizi*, "Difficulties in the Way of Persuasion"; Liao, 1939). Aristotle faced a plaza of nominally equal citizens; Han Fei faced a court where a wrong word could cost the speaker's life. The former folded the argument for listeners who could not keep up; the latter folded the argument for a ruler of shifting moods who held the power of life and death. The objects of the concession differ; its structure is the same: the art of persuasion is first an art of reading people, not an art of seeking truth—which words can enter whose ears takes priority over which words are true.

Two millennia later, Pascal gave another formulation of the same problem in *De l'art de persuader* (The Art of Persuading). Opinions enter the soul by two doors:

> Personne n'ignore qu'il y a deux entrées par où les opinions sont reçues dans l'âme, qui sont ses deux principales puissances, l'entendement et la volonté. La plus naturelle est celle de l'entendement, car on ne devrait jamais consentir qu'aux vérités démontrées ; mais la plus ordinaire, quoique contre la nature, est celle de la volonté ; car tout ce qu'il y a d'hommes sont presque toujours emportés à croire non pas par la preuve, mais par l'agrément. (Pascal, 1658/2017)
>
> Translation: No one is unaware that there are two entrances by which opinions are received into the soul, namely its two principal powers: understanding and will. The most natural is that of the

> understanding, for one should never consent except to demonstrated truths; but the most common, though contrary to nature, is that of the will: men are almost always carried into believing not by proof, but by pleasure.

Hence his lament:

> De sorte que l'art de persuader consiste autant en celui d'agréer qu'en celui de convaincre, tant les hommes se gouvernent plus par caprice que par raison ! (Pascal, 1658/2017)
>
> Translation: So the art of persuading consists as much in the art of pleasing as in the art of convincing—so much are men governed by caprice rather than by reason!

Pascal refuses to lay down rules for pleasing, and his reason is candid: the art of pleasing is incomparably more difficult, more subtle, more useful, and more admirable, he says, and he does not consider himself capable of treating it; he even believes the task to be absolutely impossible (Pascal, 1658/2017). Aristotle and Pascal thereby divide the labor: the former records the concession on the audience's side—the full argument is too long, and rhetoric folds it for the listener; the latter records the persuader's predicament—the rules of pleasing, though they exist (Pascal believed them as reliable as demonstration), lie beyond attainment: the principles of pleasure differ from man to man and shift in each. This "absolutely impossible" reserves a testing position for what follows: when the effect of persuasion can be measured repeatedly, the question is whether what is being optimized is a rule of pleasing, or only that part of the response which can be measured.

The testing position Pascal left open received, more than half a century later, a mathematical answer. In 1713 the posthumous *Ars Conjectandi* of Jakob Bernoulli appeared; its fourth part applies the preceding doctrine to civil, moral, and economic affairs, and in doing so it hands one side of persuasion over to calculation. Bernoulli defines probability as a degree of certainty:

> Probabilitas enim est gradus certitudinis, & ab hac differt ut pars a toto. (Bernoulli, 1713)
>
> Translation: Probability is a degree of certainty, and differs from it as a part from the whole.

Before the definition he states what this measure measures: persuasion. All other things, he says, obtain in our minds a less perfect measure of certainty, greater or smaller according as the probabilities that persuade a thing to exist, to be going to exist, or to have existed are more or fewer—suadent is the Latin verb for persuading (Bernoulli, 1713). What is measurable is thereby the weight of arguments, not the effect of pleasing. The rules then draw two boundaries. First, belief must be proportioned to certainty:

> Oportet enim, ut fides, quam rebus tribuimus, proportionata sit gradui certitudinis, quam unaquæque res obtinet. (Bernoulli, 1713)
>
> Translation: The belief we attribute to things must be proportional to the degree of certainty that each thing obtains.

Bernoulli warns as well that what is more probable than other things may not be held, or forced upon others, as absolutely certain (Bernoulli, 1713). Second, the weighing of arguments permits no selection: "Non sufficit expendere unum alterumve argumentum, sed conquirenda sunt omnia, quæ in cognitionem nostram venire possunt, atque ullo modo ad probationem rei facere videntur"—it does not suffice to weigh one or another argument; everything must be sought out that can come within our knowledge and appears to contribute in any way to proving the thing (Bernoulli, 1713). Three ships set sail from port, and word comes that one of them

has been wrecked: if one attends only to the number of ships, the misfortune might have befallen each alike; but remembering that one of them was eaten away by rot and old age, badly rigged in masts and sails, and commanded by an inexperienced master, one judges that ship the more likely to have perished (Bernoulli, 1713). He further proposes that the magistracy fix explicit limits for the "moral certainty" that practice requires—whether 99/100 of certainty suffices, or 999/1000 must be required—so that a judge could not be biased, but would have a guideline to observe continually in passing judgment (Bernoulli, 1713).

Equally telling is what Bernoulli excludes from the weighing. One of his rules draws the boundary of conjecture: if a thief under interrogation answers that he sold the stolen object to Sempronius, and Sempronius is at hand, from whom the whole matter can be learned with certainty and ease, the judge who would rather conjecture the probability of the statement from the speaker's countenance and tone of voice—ex vultu tonoque loquentis—or from the quality of the stolen goods and the other circumstances of the theft, handles the case foolishly (Bernoulli, 1713). The rule concerns situations in which direct verification is available: a weaker conjecture must not replace it. Outward signs can themselves be weighed—Bernoulli lists the accused's pallor and timid answers alongside testimony among the arguments in his murder case; what he forbids is only forsaking verification for conjecture. Han Fei's knowing the heart of the person addressed is the guessing at one's object before persuading; Bernoulli's case here is the evaluation of evidence in judicial proof—the two were never a single capacity. The line weighing draws lies elsewhere: it weighs arguments, not pleasing. What he did not claim is equally clear: Bernoulli offers no method for measuring the effect of pleasing; the rules of pleasing that Pascal judged himself unable to attain are equally absent here. Bernoulli's calculus treats the weight of arguments on the side of understanding, and constrains the belief one gives to things. The effect readings of the metric age measure the other side: they record the results of pleasing; they do not weigh arguments—and this is not the completion of Bernoulli's program but its replacement. The testing position Pascal left open here receives its historical form.

The technical support of this replacement Lanham calls a further inversion since Pascal: the computer has always been housed in the tradition of logic, but in practice it is a rhetorical device as well (Lanham, 1993)—

> We've always, from Pascal to the present, thought of computers, especially digital computers, as logic machines…I would like, as a supplement and complement to this view from philosophy and theory, to suggest that in practice, the computer often turns out to be a rhetorical device as well as a logical one, that it derives its aesthetic from philosophy's great historical opposite in Western thought and education, the world of rhetoric. (Lanham, 1993)

The calculus that weighs arguments and the rhetoric that attracts attention thus converge on the same machine—the two doors of Pascal are taken over by the digital computer together.

Joy, as the mechanism of persuasion, holds yet another station in the Tuan commentary on Hexagram 58 (Dui, the Joyous) of the *Zhouyi*:

> THE JOYOUS means pleasure. The firm is in the middle, the yielding is without. To be joyous—and with this to have perseverance—furthers; thus does one submit to heaven and accord with men. When one leads the way for the people joyously, they forget their drudgery; when one confronts difficulty joyously, the people forget death. The greatest thing in making the people joyous is that they keep one another in order. (*Zhouyi*, Hexagram 58, "Tuan"; Wilhelm and Baynes, 1967)

Make the people pleased in their hearts, and they forget their toil and willingly brave danger. Unlike Pascal's description, joy here is not a side gate to be guarded against but a mobilizing force registered in positive terms—the condition of "submitting to heaven and according with men" is led by joy. Pascal diagnoses the gate of the will; the Tuan writes the same gate as an operating manual: the one reminds us that men almost always believe through pleasure, the other has already organized pleasure into the institutional design for harnessing the people's labor (the Tuan restricts the use of joy through "the firm is in the middle, the yielding is without" and "to be joyous—and with this to have perseverance—furthers"—and this restriction shows that the operating manual, too, has its own normative threshold). This contrast foreshadows the problem of later sections: those who describe the trap and those who use it are often not the same people, but the latter often make use of the notes left by the former.

The lineage of joy thus entered Chinese literary theory. Chapter 18 of the Wenxin Diaolong ties shuo directly to the Tui image:

> The character shuo, or to speak or to discuss, has the sense or meaning of yüeh, or to please. And as tui, or to please, is a mouth and tongue [according to the "Shuo-kua" in the Book of Changes], then the way to please is by means of one's words. But when one's attempt to please goes beyond his actual state of feeling, he is guilty of hypocrisy. For this reason Shun abhorred flattery. (*Wenxin Diaolong*, ch. 18; Shih, 1959/2015)

Tui is the mouth and tongue, so the road of persuasion runs through words; but when the attempt to please outruns the actual state of feeling, it turns into pretense, and Shun therefore dreaded flattery. Liu Hsieh also records the high noon of the Warring States sophists and Han Fei's inverted-scale image thereby passes into literary theory:

> The eloquence of one man was more weighty than the precious nine tripods; a tongue three inches long was stronger than a million troops. … The important thing in employing the shuo, or discussion, is to grasp the opportune moment, sometimes discussing with leisurely ease and sometimes with tension; further, the shuo need not always be effected in speech, for it can also be executed in writing. Fan Chü's [letter to King Chao of Ch'in], discussing affairs of state, and Li Ssu's [memorial to the first emperor of the Ch'in], arguing against the latter's order to get rid of all guest ministers, drive home the important points, and every word in them hits the right mark. Although [in tendering these memorials both men] were touching the reversed scales [of the dragon], they succeeded in putting over their ideas. (*Wenxin Diaolong*, ch. 18; Shih, 1959/2015)

The one renders the same diagnosis as Pascal—the mechanism of pleasing carries its own tendency to overreach; the other shows Han Fei's legacy entering literary theory. Liu Hsieh folded the history of the art of reading persons into the taxonomy of styles.

In the *Lectures on Rhetoric and Belles Lettres*, Adam Smith recast this technical distinction as an ethical one. The didactic style sets the arguments of both sides before the eyes in their true light, gives each its due weight of influence, and persuades only until the argument itself appears credible; the rhetorical style persuades by all available means, magnifying the one side and diminishing or concealing the other (Smith, 1762–63/1983). The boundary of the didactic style is the strength of the argument; the boundary of the rhetorical style is only the end pursued. This dichotomy supplies a criterion for the expression of the metric age: how far expression has left the didactic style is measured by whether the effect reading itself has become the end. The Chinese

classics approach the same problem from another direction: the Wen Yen commentary on the first hexagram does not draw the boundary from outside; it grounds sincerity itself as the foundation of rhetoric—"By working on his words, so that they rest firmly on truth, he makes his work enduring" (*Zhouyi*, Hexagram 1, "Wen Yen"; Wilhelm and Baynes, 1967): rhetoric that does not stand on sincerity has no work in which it can dwell. Smith and the Wen Yen thereby stand in contrast: Smith draws the boundary by the presentation of the argument—whether expression gives both sides of the argument their true weight, or magnifies and conceals for the sake of one side's end; the Wen Yen takes its stand on the sincerity of the speaker—rhetoric can make work endure only because it issues from the sincerity of the heart, and if sincerity is absent, no amount of technique has any work in which to dwell. The judgment toward which both converge is this: the disease of rhetoric lies not in technique, but in the relation between technique and sincerity.

Mencius gives a third boundary of persuasion: the boundary of force. "When people submit to force they do so not willingly but because they are not strong enough. When people submit to the transforming influence of morality they do so sincerely, with admiration in their hearts. An example of this is the submission of the seventy disciples to Confucius" (*Mencius*, II.A.3; Lau, 2004). Submission to force and submission to virtue may look the same on the surface—both have "submitted"; the dividing line lies in the heart: sincere submission with admiration in the heart is the consent of judgment, while submission to force is the yielding of the weaker party. This pre-draws the boundary for the metric scenes of §5: measurable compliance and unmeasurable heartfelt submission are two different kinds of being persuaded.

The convergence of persuasion and promise lies in the borrowing of form. The advertisements of §1.2 already showed this: the form of the promise carries a built-in appearance of credibility—exactly the material a persuader most wants to borrow; advertising competes for attention with grand promises while declining the promise's accountability structure. Ancient history pushed this convergence to an extreme: Zhang Yi lobbied King Huai of Chu with the promise that, once Chu broke off relations with Qi, he would present the six hundred *li* of land at Shangwu; the rupture accomplished, Zhang Yi changed his words to "six *li* in breadth and length" (*Records of the Historian*, "The Hereditary House of Chu"; author's translation). The verbal promise, having served as bait for persuasion, was used up and discarded; between six hundred *li* and six *li*, what was withdrawn was precisely the accountability structure—when a delighted King Huai handed the chancellor's seal to Zhang Yi, the persuasion was complete; when fulfillment failed, Chu's reliance had already been paid out irreversibly with the rupture. The form of the promise borrowed, the accountability structure extracted—this structure was called advertising in the print age and fraud in Zhang Yi's case; the only difference is that the latter had to pay a price in reputation and the former did not. The two lines can thus be distinguished, and must be distinguished—but the criterion of distinction is not solemnity of tone; it is whether the accountability structure is present: the form of the promise can serve persuasion at the same time; what must be recognized is whether the expression places its author under an obligation that can be demanded of him.

§1.4 Promise, Prediction, Persuasion, Evaluation, and Reliance

Chapter 23 defined a promise as an assurance of fulfillment that still owes a verification. This chapter unfolds the same concept from the side of obligation: the promise is an action by which a person takes on an obligation toward another—through intelligible expression, the promisor gives the other grounds to require that he perform some action, or answer for what he has guaranteed. The obligation usually extends into the future; it may also concern a guarantee about present facts and responsibility for what follows. This does not presuppose

that promises must be enforceable in court; the relations among moral constraint, social convention, and legal obligation are themselves part of what must be discussed.

In *Contract as Promise*, Fried distinguishes a truthful report of one's present intentions from a commitment to future action: to state truthfully what one now intends is not yet to have given up the freedom to change one's mind. The promise adds a constraint that cannot be explained by one's present will alone.

> A promise invokes trust in my future actions, not merely in my present sincerity. (Fried, 2015)

Several neighboring but distinct things can thus be told apart. A prediction makes a judgment about whether something will happen; a promise makes some action or guarantee an item for which the promisor is answerable. Persuasion attempts to change others' views or actions, without necessarily taking on any future obligation. §1.3 has already shown the practical form of this distinction: advertising persuades in the form of a promise while the obligation of the promise is absent. An evaluation offers a judgment about an object, and does not by that token become a guarantee of the object's future performance. Reliance concerns how others act on it: a person can depend on a weather forecast that made no promise to him, and may for a time fail to act on a valid promise. These connect with one another, but none can substitute for the definition of another.

These distinctions do not automatically exempt those who made no promise. Fried concedes that the promise is not the only ground of responsibility for another's loss. Misleading, negligence, and the retention of gains one is not entitled to keep can all raise questions of responsibility beyond the promise (Fried, 2015). One therefore cannot call every credible expression a promise, and one cannot stop asking after an expression and its consequences merely because no explicit promissory sentence has been found.

§1.5 From Domain Comparison to a Shared Problem

Academic evaluation, financial knowledge, and platform distribution face different objects. Whether research findings are reliable, how a financial contract is performed, whether media content deserves belief—each has its own conditions of recognition. Chapter 23 discusses publication, evaluation, and the growth of knowledge; Chapter 24 discusses judgment, models, and market feedback; Chapter 29 discusses distribution rights and how they remake producers. What this chapter adds, cutting across these fields, is a question that runs through them: when people arrange their own futures on the strength of some assurance, who is qualified to define what the assurance contains, who may interpret changes, and who bears the consequences when it fails?

This question cannot be answered merely by collecting instances of broken faith. Even if all parties were sincere at the outset, an arrangement can still break down in performance; even if an apparatus executes its prescribed procedure exactly, the matters the procedure handles may not be the matters the parties originally trusted. What must be examined is not only deception and evasion, but also the limits of honest promises in complex circumstances.

The sections that follow first compare, along the two lines East and West, how these limits were posed (§2), then treat the tension between keeping promises and re-judging (§3); they then distinguish, at the institutional level, the making of promises, the recognition of performance, the interpretation of conditions, and the bearing of consequences (§4), place the three scenes under the same set of questions (§5), and examine expression, agency, and exit after the entry of AI (§6, §7). The comparison presupposes neither that East and West each possess a single answer, nor that the chronological ordering of texts proves anything about institutional change.

§2 Eastern and Western Threads: Inside the Apparatus and Outside It

§2.1 The Chinese Thread: From Oath and Covenant to the Reservation of Judgment

In Chinese thought, the promise goes by the name of trustworthiness (*xin*). *Xin* never takes the form of a dedicated treatise; it is a single-character conceptual network running through the classics, the philosophers, and the histories: the *Zhouyi* has a hexagram, Zhongfu, named after *fu* (sincerity); the Tuan commentary on the Kan hexagram likens the constancy of *xin* to water that "flows on and nowhere piles up; it goes through dangerous places, never losing its dependability"; the Wen Yen on the first hexagram grounds rhetoric in sincerity; the Analects gives *xin* the functional definition of a transmission component, and "Yan Yuan" lists the people's trust as the last thing without which the state cannot stand. This cluster of definitions is scattered across the classics without ever forming a monograph, yet its density is undiminished; what follows draws on it by argumentative function. "Qu Li II" of the Book of Rites distinguishes two forms of confirming an agreement:

> When there is a binding to mutual faith, it is called 'a solemn declaration.' When they use a victim, it is called 'a covenant.' (*Book of Rites*, "Qu Li II"; Legge, 1885)

A pledge fixed in words is called a *shi* (a solemn declaration); a pledge sealed by slaughtering a victim and smearing its blood is called a *meng* (a covenant)—a ceremonial apparatus stacked upon the verbal apparatus. The collateral of the *shi* is the speaker's creditworthiness; the collateral of the *meng* is the witnessing force of the ritual. The grading shows this: the constraint of words alone needs the reinforcement of witness and ceremony.

"Tan Gong II" records Zhou Feng's reply to Duke Ai, together with a diagnosis of stacked apparatuses and diminishing efficacy:

> The kings of Yin made their solemn proclamations, and yet the people began to rebel; those of Zhou made their covenants, and the people began to distrust them. If there be not the heart observant of righteousness, self-consecration, good faith, sincerity, and guilelessness, though a ruler may try to knit the people firmly to him, will not all bonds between them be dissolved? (*Book of Rites*, "Tan Gong II"; Legge, 1885)

Stack the proclamations, and rebellion begins; stack the covenants, and distrust begins. The iteration of apparatuses did not repair their efficacy; it marked its loss—what sustains promises has never been the apparatus itself, but "the heart observant of righteousness, self-consecration, good faith, sincerity, and guilelessness"; the reinforcement that oath and covenant lend to form cannot compensate for the absence of this layer. What this section takes from the passage is a structural analysis of the relation between apparatus and efficacy; Zhou Feng's context is a critique of ritual institutions, and the passage does not assert that these qualities cannot be cultivated or damaged by institutions—§2.3 returns to this point.

The Analects gives *xin* a functional definition:

> I do not know how a man without truthfulness is to get on. How can a large carriage be made to go without the cross-bar for yoking the oxen to, or a small carriage without the arrangement for yoking the horses? (*Analects*, "Wei Zheng"; Legge, 1893)

Xin is not moral ornament but a transmission component: the *ni* and the *yue* are the small pins that join shaft

and yoke into a load-bearing whole; without them, the strongest horses and the sturdiest carriage body cannot transmit force into motion. "Yan Yuan" pushes this definition to its extreme of ranking—"From of old, death has been the lot of all men; but if the people have no faith in their rulers, there is no standing for the state" (*Analects*, "Yan Yuan"; Legge, 1893): of food sufficiency, military sufficiency, and the people's trust, trust is the last thing that cannot be given up. Every apparatus of promise is driven through this component; without *xin*, the apparatuses spin idle.

The *Laozi* issues one warning each about light promises and fine words. "Assent lightly given surely inspires little trust. Regarding many things as easy is sure to result in many difficulties" (Laozi, ch. 63; Lynn, 1999)—light promises easily damage credit; "Sincere words are not beautiful. … Beautiful words are not sincere" (Laozi, ch. 81; Lynn, 1999)—the charm of words and the reliability of their content can come apart. When the promise becomes a dimension of competition and persuasion becomes a profession, the risks of broken faith at which these two warnings aim are correspondingly amplified.

The first hard collateral of the promise apparatus is the person. The "Ji Bu and Luan Bu" chapter of the Records of the Historian records the proverb of Chu, "A promise from Ji Bu is worth more than a hundred catties of gold" (*Records of the Historian*, "Ji Bu and Luan Bu"; Yang and Yang, 2008)—a verbal promise matched against gold: personal credit had risen to the point of being weighed with it. The same work's chapter "The Gallant Citizens" gives the behavioral norm of the personal pledge: "their word can be trusted. They keep all their promises, honour all their pledges, and hasten to rescue those in distress regardless of their own safety" (*Records of the Historian*, "The Gallant Citizens"; Yang and Yang, 2008). The covenants of the court rested on ritual and on punishment and reward; the promises of the knights-errant rested on the person and on all he had—the two coexisted, and the latter need not be explained by the failure of the former.

Confucianism preserved a place for judgment on top of the apparatuses of promise. Mencius restricts mechanical promise-keeping by "rightness": the performance of what one has already said and done is not itself the final ground of legitimacy. This gives the chapter a key distinction: between legitimate re-judgment (the good "need not keep one's word") and welching (the bad "need not keep one's word"), what lies in between—whether the reasons can hold, whether they can accept challenge, and who bears the consequences of changing the promise. §3 will unfold this distinction in its contract-law form.

But the reservation has a dark side: when it is held unilaterally by power and the reasons can be interpreted by one side alone, "where rightness lies" may degenerate into a license to welch—the reservation of judgment cannot be equated with the promisor's retaining the final power of interpretation, and who is qualified to reserve judgment, and whether the other side can contest it, is a question of power in the institutions of promising. The Western side has an explicit version of the same logic. Machiavelli writes in Chapter XVIII of *The Prince*:

> Therefore a wise lord cannot, nor ought he to, keep faith when such observance may be turned against him, and when the reasons that caused him to pledge it exist no longer. (Machiavelli, 1532/1952)

He adds the technology of appearance at once—"But it is necessary to know well how to disguise this characteristic, and to be a great pretender and dissembler"—and offers the example of Pope Alexander VI: "there never was a man who had greater power in asserting, or who with greater oaths would affirm a thing, yet would observe it less; nevertheless his deceits always succeeded according to his wishes" (Machiavelli, 1532/1952). Machiavelli's "the reasons that caused him to pledge it exist no longer" writes out the unilaterally held power

of interpreting reasons; and Alexander VI anticipates Zhang Yi's structure: the form of the promise present, the accountability structure absent.

The state apparatus of *xin* has a famous scene in the "Biography of Lord Shang" of the Records of the Historian. The decrees were complete but not yet promulgated; fearing that the people would not trust them, Shang Yang set up a pole three zhang tall at the south gate of the capital's market and offered ten *yi* of gold—a Qin-era unit of twenty-four *liang*—to anyone who would move it to the north gate; the people found it strange, and no one dared; the offer was raised to fifty *yi*. One man moved it and was promptly paid fifty *yi*, "to make it clear that he did not deceive them. He then issued the decrees" (*Records of the Historian*, "The Biography of Lord Shang"; author's translation). Moving the pole was a performance: before the decrees took effect, the state first purchased credit for its own promise—ten *yi* was not enough, so the price rose to fifty; that the onlookers hesitated and dared not act shows precisely that trust must be built on visible fulfillment.

But the later part of the same biography immediately records the cost: the decrees had been in force for a year when the people of Qin who came to the capital to complain of the inconveniences of the new decrees numbered in the thousands; when the crown prince broke the law, his tutor Gongzi Qian was punished and his teacher Gongsun Jia branded, and "the next day, the people of Qin all hastened to comply" (*Records of the Historian*, "The Biography of Lord Shang"; author's translation). Ten years on, "the people were brave in the public fight and timid in the private feud" (*Records of the Historian*, "The Biography of Lord Shang"; author's translation); and when those who had complained of the decrees came back to praise them, Shang Yang dismissed them as "all people who confound the reform of customs" and moved the whole lot to border towns—"after this, none among the people dared to discuss the decrees" (*Records of the Historian*, "The Biography of Lord Shang"; author's translation). The same process of governance both built the decrees' credibility through visible reward and compressed public discussion of them through punishment: moving the pole made the decrees credible; punishing the tutors and banishing the "people who confound the reform of customs" made public discussion of the decrees itself dangerous—even those who later came to praise them were not spared. Here the state's credit did not become an accountability structure for its promises; it confiscated the qualification to evaluate them—it did pay out the fifty *yi*, yet it brought it about that none among the people dared to discuss the decrees. Compared with Hobbes's sword, what must be seen here is the simultaneous presence of two things: the sword executes the promise, the moved pole manufactures credibility, and the order of banishment confiscates even the qualification to evaluate trust.

§2.2 The Western Thread: Convention, the Sword, and Capacity

The Western thread begins with Hume's deconstruction of the nature of promises. The corn scenario of §1.1 shows that the convention of the promise answers a difficulty across time; Hume's further judgment can be added here. He holds that a bare act of will cannot create a moral obligation out of nothing—people invent a fictitious mental act, "willing an obligation," to explain why the use of certain forms of words should make a material difference, and no such act exists (Hume, 2016):

> As the obligation of promises is an invention for the interest of society, it is warped into as many different forms as that interest requires, and even runs into direct contradictions, rather than lose sight of its object. (Hume, 2016)

On this basis the chapter can propose its working definition: a promise is an apparatus that sets an obligation

through intelligible expression, thereby giving the other party grounds to require performance or to demand responsibility. The obligation usually extends into the future, and it may also involve a guarantee about present facts and responsibility for what follows (§1.4); whether such grounds exist, and whether the mechanism of accountability is effective, are two questions that must be judged separately (§1.3). The ritual witness of oath and covenant, the courts of contract, the ratings and payouts of the platform—each is the hardware of the accountability structure in a different era. What is sharp in Hume is the candor: the obligation of promises does not grow out of the will; it is an invention of interest, and it changes form as interest requires. This explanation does not degrade the promise into words without substance—on the contrary, the convention makes it possible to organize mutual aid that could hardly proceed otherwise; nor does Hume reduce all intercourse to the exchange of interests: in the same section he preserves friendship and help given without expectation of return. What needs particular forms of words to mark it off is the class of cooperation that existing closeness alone cannot sustain.

The social formation of the promise and the legitimacy of the promise remain two questions. To explain how a person learns to keep agreements is not to prove that a given agreement deserves to be kept; to point out that obligation rests on convention is not to prove that all conventions are equally legitimate. Fried's critique of Hume lands exactly on this difference: an account of how the sense of obligation arises cannot by itself answer why a promise should still be kept when breach would go undetected (Fried, 2015).

Hobbes translates the same gap into the problem of sovereignty. In Part II, Chapter 17 of *Leviathan*, treating the generation of the commonwealth, he writes:

> And Covenants, without the Sword, are but Words, and of no strength to secure a man at all. (Hobbes, 1651/2024)

"Tan Gong II" asks "with what heart one presides over it"; Hobbes asks "with what sword it is executed"—East and West discovered the same gap in the same place (bare words cannot bind), and filled it with different emphases: the one leaning on witness and the person, the other on third-party enforcement. This is only a broad difference of emphasis in how the texts present the matter, not a verdict on the essence of civilizations: China had the coercive enforcement of law, and the West had personal credit and inward obligation. The differences between apparatus architectures are themselves the proper object of comparison.

Nietzsche recast the question as a question of manufacture: how was the animal that can promise formed? The second essay of *On the Genealogy of Morality* opens:

> To breed an animal with the prerogative to promise – is that not precisely the paradoxical task which nature has set herself with regard to humankind? is it not the real problem of humankind? (Nietzsche, 2007)

He connects memory, custom, social coercion, and responsibility: in making a promise, a person must make the original intention pass through whatever happens later without being interrupted by each new impulse. Such a capacity cannot be treated as a natural endowment requiring no explanation (Nietzsche, 2007). But the account does not end with society manufacturing the compliant. Immediately afterward, Nietzsche also describes the individual who can throw off the bonds of custom and command an independent and enduring will. The long formation that makes a person predictable and the capacity to take charge of one's own future stand in a complex relation. One must not compress his argument, by excerpting only the side of punishment and memory, into the

claim that every personality is the passive product of control apparatuses.

Nietzsche's genealogical narrative contains a piercing exposure of cruelty and domination. The chapter does not treat his account of prehistoric society as independently verified universal history, nor does it accept the conclusion that responsibility can be cultivated only through punishment. What needs to be kept is his question: what conditions of formation does a person need in order to remember agreements, understand consequences, and sustain long courses of action—and what price do these conditions pay? From this question on, the capacity to promise and the capacity to obey cannot be conflated. A person who always acts on external instructions may be easy to predict without being able to judge what he ought to take upon himself; a person who can state the scope of a promise, refuse guarantees he should not give, and answer for guarantees he has given is involved in a fuller exercise of judgment. The two capacities may be cultivated by the same institution, and they may also move in different directions; one cannot distinguish them by fulfillment rates alone.

In Chapter V of *The Human Condition*, Arendt discusses the promise within the plurality of human beings. The human future is unforeseeable, both because no one can fully guarantee what he will be tomorrow and because everyone lives together with others who are themselves capable of action. Within such relations, promising provides a limited stability that lets people act around commonly agreed ends; its power does not come from an isolated will's total command over the future (Arendt, 1958). This stability has clear boundaries. Arendt stresses that mutual promises build local predictability within uncertainty while preserving the unpredictability of human affairs. A promise that tried to cover the whole space of the future, laying out roads in advance for every direction, would exceed what it can sustain. She also links promise and forgiveness to unpredictability and irreversibility respectively. Action leaves consequences that cannot be treated as never having happened, yet people retain the capacity to change their relations and to begin again. This treatment reminds us that from the irreversibility of the past one cannot directly infer that the future can only continue along existing relations.

Hume, Nietzsche, and Arendt do not jointly deliver a single theory of the promise. Hume explains how convention organizes cooperation; Nietzsche asks after the formation of the capacity for responsibility; Arendt stresses how plural human beings face the future together. Setting these questions side by side helps the chapter avoid lodging judgment in a pure interior that institutions have never touched. Judgment needs to be cultivated, and it needs to meet the actions of others; institutions may support that formation, and they may also mistake predictable obedience for judgment already complete.

§2.3 Where the Threads Converge: The Question of Qualification

The two threads point to one question: the efficacy of the promise apparatus depends on conditions that the apparatus itself does not produce—what "Tan Gong II" calls the heart observant of righteousness, self-consecration, good faith, sincerity, and guilelessness; what the Analects calls *xin*; what Mencius calls rightness; what Hume calls the public interest and moral sentiment within the convention; what Arendt calls commonly agreed ends. Whether these conditions come down to one and the same thing is precisely what the following sections and the conclusion must treat. The apparatus can take over the execution of promises—blood-smeared oaths, courts, ratings, protocol stacks; each generation of apparatus is more efficient—von Neumann listed the three ingredients of the industrial revolution, in all its stages, as more and cheaper energy, more and easier controls of human actions and reactions, and more and faster communications (von Neumann, 1955), and the promise apparatus is precisely the institutional form of that ingredient of control; what the apparatus cannot produce is the condition that makes it run.

The list finds its most complete theoretical working-out on the Chinese side. Xunzi says:

> Heaven and Earth are most vast, but without integrity they could not transform the myriad things. The sage is most wise, but without integrity he could not transform the myriad people. Father and son are most intimate, but without integrity they will become estranged. Lords and superiors are most exalted, but without integrity they will be debased. Integrity is what the gentleman clings to, and is the basis for government affairs. (*Xunzi*, "Nothing Improper"; Hutton, 2014)

The transformation of the myriad things and of the myriad people depends on integrity and not on any instrument of proclamation; integrity is not the product of the apparatus, yet it is what every apparatus of government depends on to run—here the "condition outside the apparatus" is instituted as the basis of government.

Nietzsche poses the deepest challenge to this structure: the very personality that can promise may itself be a product of the apparatus—the apparatuses of debt, punishment, and memory manufacture "the animal with the prerogative to promise." If that is so, then "the condition outside the apparatus" is also inside the apparatus. The chapter does not prejudge this dispute; it marks it: §6 will see that contemporary arrangements do simultaneously manufacture promise apparatuses and shape promisors—the platform both provides the interface of the promise and trains users' understanding of what a promise is. The two sides, judgment and apparatus, are not something this chapter can sort out in advance.

Here the question of qualification for the reservation of judgment comes to the surface. When Mencius says "need not keep one's word," he does not say who is to judge where rightness lies; §2.1 has shown what the reservation becomes when it is held unilaterally by power: a license to welch. The contemporary question must therefore be: when performance conflicts with other legitimate reasons, who explains the conflict, who examines the reasons, and what becomes of those who trusted? §3 treats this question in its contract-law form.

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§3 Between Keeping Promises and Re-Judging

§3.1 Trustworthiness Alone Cannot Decide the Rightness of Action

The "Li Lou II" chapter of the Mencius states:

> Mencius said, 'A great man need not keep his word nor does he necessarily see his action through to the end. He aims only at what is right.' (*Mencius*, IV.B.11; Lau, 2004)

The subject of the passage is often read out. "The great man" is the premise: Yang Bojun renders it, "A man of virtue does not necessarily keep his word, nor necessarily carry his deeds through; he abides wherever rightness leads" (Yang Bojun, 2008; author's translation). Accordingly, "words need not be kept" is not a permission granted to just anyone; its legitimacy rests on three conditions. First, the person of the judge: the great man is one possessed of moral judgment and versed in the underlying patterns of things—not just anyone. Second, the judgment must withstand time and experience: Zhu Xi's note reads, "He does not pre-commit to trustworthiness and follow-through; but wherever rightness lies, he follows it—and in the end he has never failed to keep faith and follow through" (Zhu Xi, *Sishu Zhangju Jizhu*; author's translation); one who takes rightness as master does not abolish trust. Third, the motive must be clean: nothing held in view but rightness itself, no private interest admixed—Wang Mian's saying, "If one fails to keep faith and follow through not on the ground of rightness, that is a reckless man," concerns precisely conduct not in accord with rightness. Rightness is appraised in

the concrete situation (Zhu Xi's note on the adjacent chapter, "Rites that are not rites and rightness that is not rightness—the great man does not do them": "The great man follows the pattern as each affair presents itself"). The passage is thus double-edged: it subordinates trustworthiness and follow-through to rightness, does not treat the fulfillment of one's own past words as the final ground of legitimacy, and does not say that a promise may be withdrawn whenever the promisor's preferences change; and rightness as the standard is neither an alias for any individual's will, nor exercisable without the moral capacity of the one who judges.

A contemporary question can be raised from this—but its answer cannot simply be credited to Mencius: when continuing performance conflicts with other reasons that ought to carry weight, who is to explain the conflict, and who to judge its force? The promisor may be the first to learn of changed circumstances, and also the one most tempted to exaggerate the change; the promisee may have suffered real loss, or may exploit an out-dated agreement to claim disproportionate benefit. Admitting the necessity of re-judgment does not settle the arrangement of the qualification to judge.

The question has an early echo in pre-Qin thought. The "Qi Wu Lun" chapter of the Zhuangzi pushes the problem of adjudicating debate to its limit:

> Whom should we have straighten out the matter? Someone who agrees with you? But since he already agrees with you, how can he straighten it out? Someone who agrees with me? But since he already agrees with me, how can he straighten it out? Someone who disagrees with both of us? But if he already disagrees with both of us, how can he straighten it out? Someone who agrees with both of us? But since he already agrees with both of us, how can he straighten it out? (*Zhuangzi*, "Qi Wu Lun"; Ziporyn, 2009)

Victory and defeat cannot establish right and wrong; and the adjudicator cannot be produced from a neutral position—whoever shares a side with either party has already lost neutrality, and whoever differs from both loses standing. The difficulty of the qualification to adjudicate is not a new problem; what this chapter does is move it from the rights and wrongs of debate to the interpretation and the bearing of promises.

The reservation of judgment therefore cannot be equated with the promisor's retaining the final power of interpretation. If one party can unilaterally declare what counts as legitimate and what change suffices to dissolve the obligation, while the other can only accept the outcome, then the reservation of judgment may become an asymmetric distribution of power. The example of Machiavelli in §2.1 has already shown the extreme form of this asymmetry on the side of power; what this chapter needs to recognize is whether people can state reasons, test the other side's reasons, and bring the relevant consequences into the process—not merely whether someone has reconsidered in private.

§3.2 Why Present Regret Cannot Automatically Cancel Earlier Choices

Fried stresses the binding force of the promise from another direction. He treats the voluntarily made promise as an exercise of personal autonomy: by binding his own future, a person enables others to undertake plans that depend on that binding. If obligation could be withdrawn whenever performance became unwelcome, the assurance the promisor initially meant to give the other party would never hold (Fried, 2015).

In this argument, respecting a person does not mean only respecting his preferences at the moment of performance; it means taking seriously his earlier capacity to take on obligations. A person's actions are not composed

of unrelated instants. A sustained project requires that a person be able to carry earlier choices forward, rather than beginning anew at each moment from his latest wish.

But Fried does not conclude that all disputes must be settled by the literal content of the promise. He distinguishes simple regret from factual mistake, changed conditions of performance, and kindred issues, and he allows that other moral and legal principles have their part in the making and performing of agreements. The promise principle can explain a distinctive obligation, but it is not an exclusive explanation of all losses and disputes (Fried, 2015).

This makes the relation between keeping promises and judgment more concrete. What must be prevented is transferring one's own costs of regret to others without condition; what must be preserved is the recognition of what a promise contains, under what conditions it arose, and what conflicts follow. Neither can be achieved by a single ruling—"keep promises" or "allow exceptions"—at a stroke.

§3.3 Whose Choice Gets Priority Protection

In his 1981 review of the first edition of Contract as Promise, Atiyah advanced the dispute to the allocation of rights. He asks: why should respect for autonomy require giving priority to earlier choices rather than present ones? If the promisee has already acquired a title to demand performance, how was that title confirmed, and why should it have the scope it has? Legal enforcement of future exchange does not merely preserve a value-neutral voluntary act as it stands (Atiyah, 1981).

His conclusion is not that promises lack binding force, but that the promise principle should carry a rebuttable prima facie bindingness, not be treated as a final answer excluding every other reason. Reliance already incurred, benefits obtained, the terms of the transaction, and other values the community protects may all affect how the obligation is recognized and enforced (Atiyah, 1981).

The dispute between the two authors cannot be written as a one-way history in which moral constraint is replaced by risk calculation. Atiyah acknowledges that Fried already accommodates many of the amendments to classical contract theory; their disagreements over particular outcomes are smaller than their disagreements over the principle of explanation. The real points at issue include: how wide a range of obligations the promise can explain on its own, and how much social judgment is already built into the interpretation of any particular promise.

The chapter accordingly adopts a bounded position: an existing promise constitutes a reason that must be taken seriously, but its meaning, its conditions of application, and the scope of the responsibility it carries still have to be explained. This does not guarantee a unique answer to every dispute, but it excludes two abbreviations—one may not be relieved of all explanation merely because one once agreed, nor relieved of all bearing merely because one now regrets.

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§4 After the Promise Enters Institutions, Where Does Judgment Go?

§4.1 Outsourcing Execution Does Not Automatically Dissolve Responsibility

An arrangement of promises can entrust record-keeping, verification, and execution to institutions outside the parties. This has real effects: people need not verify the other party's character from scratch each time, nor

depend on their own strength alone to demand performance. Common records and processing procedures can give the originally weaker party grounds to make demands.

But execution does not exhaust the work of institutions. First it must be recognized whether an obligation has arisen and what it contains; then it must be judged whether performance conforms to what was agreed; when conditions change, it must be interpreted whether the agreement covers the change; after loss occurs, it must be decided who is to bear it. These are not four ways of saying one number of fulfillment; they are distinct pieces of work, possibly requiring different materials and different qualifications.

Atiyah's discussion of standard-form terms makes the distinction concrete. He observes that a name signed at the end of a many-paged contract does not easily answer how much the parties actually intended to take on. Even where both parties are firms, the terms may be understood only in outline. If a single blanket consent is used to explain all the specific obligations, the interpreter has in fact made a judgment that cannot be fully reduced to the parties' prior intentions (Atiyah, 1981).

After institutions take over execution, then, judgment has not necessarily disappeared. It may have migrated into the hands of those who draft the terms, those who interpret them, and those who handle disputes. What must be asked is whether this migration has widened the participants' protection, or merely turned visible domination into procedures that are harder to recognize.

§4.2 Interpretation Is Itself a Normative Activity

In the preface to the 2015 second edition, Fried offered an important correction of his earlier treatment of mistake, obstacles to performance, and good faith. He concedes that to treat interpretation as a new principle entering from outside, merely because it goes beyond the express words of the agreement, is to conceive language too mechanically. General terms carry meanings the parties did not itemize in advance, and interpretation inescapably involves normative judgment (Fried, 2015).

This means the relation of promise and judgment cannot be drawn as a simple sequence—first human beings judge, and thereafter the apparatus need only execute. Some judgments occur within execution, again and again. Even after the parties have agreed to deliver on time, to exercise reasonable care, and to provide appropriate support, the questions remain of what "on time," "reasonable," and "appropriate" mean in the concrete situation.

At the same time, interpretation cannot become a license for the unlimited expansion of obligation. Interpreters must give an account of the language, the practices, the circumstances, and the reasons on which they rely, and distinguish explaining an existing obligation from revising its rule. Otherwise either party might, in the name of "that was the original intent," append conditions first needed later onto the other's earlier consent.

The institutionalization of judgment therefore faces constraints from two directions at once: literal execution cannot be treated as sufficient proof of legitimacy, and the power of interpretation cannot be treated as discretion beyond challenge. Participants need to be able to tell whether a dispute is about facts, about meaning, about conditions of application, or about the allocation of responsibility.

§4.3 Performance, Compensation, and Restoration Are Not the Same Thing

The Fried–Atiyah dispute over expectation interest, reliance, and restitution shows that the bearing of responsibility does not take a single form. The expectation interest aims to put the promisee in the position he would

have occupied had the promise been performed; the reliance interest looks to the outlays or losses incurred in reliance on the agreement; restitution deals with benefits the other party obtained and is not entitled to keep. The three rest on different grounds: the expectation interest can be protected through damages without entitling anyone to specific performance. Even where the amounts computed in a given case are close, the reasons cannot be merged on that account (Atiyah, 1981; Fried, 2015).

For the analysis of this chapter, compensation and restoration must also be distinguished. Suppose a delivery service fails to deliver as agreed, causing the recipient to miss an event that cannot recur. Refunding the fee disposes of part of the cost, but it does not make the event happen again; further compensation, however well founded, does not restore time to before the delivery. This scenario illustrates a difference among consequences; it is not a ruling on the damages standard of any particular legal system.

On the other hand, the fact that compensation cannot restore everything does not show that compensation is meaningless. It can redistribute loss, provide resources for the life that follows, and prevent actors from leaving the whole cost of breach to others. What truly calls for judgment is which losses it disposes of, what it leaves out, and whether it changes the conditions under which the same kind of loss recurs.

The same applies to automated execution. That a program can refund promptly, freeze permissions, or close a transaction does not by the speed of its execution establish that responsibility has been fully borne; yet automation can also bring relief that would otherwise have been difficult to obtain in time. Efficiency of execution and adequacy of responsibility must be examined in their connection, not substituted for one another.

§4.4 Measurable Risk and the Unmeasurable Remainder

Each generation of promise apparatuses widens the range of "transferable commitments," and this process has an exact epistemological coordinate. In *Risk, Uncertainty and Profit*, Knight distinguished measurable uncertainty from unmeasurable uncertainty: the former designates situations in which the distribution of outcomes can be known—situations Knight reserved for the special name "risk"—which can be transferred through grouping and insurance; the latter designates situations too particular to be grouped, which cannot be eliminated by pooling more similar cases (Knight, 1921).

By this coordinate, insurance—which groups individual losses into computable premiums—is the classic apparatus for organizing measurable risk into a transferable arrangement; contracts can also allocate the consequences of highly uncertain events—what can be allocated in law is not the same as what can be computed in cognition. Grouping covers situations in which the distribution of outcomes can be known; changes in the conditions of performance that exceed what the original arrangement covers cannot be removed by grouping and still require judgment and interpretation—though this does not mean that every change belongs to the latter class: some changes are covered by the agreement, and some can be foreseen.

The three scenes that follow will encounter variants of this distinction again and again: the metric records some effect as a measurable reading, while the substantial part of the promise falls precisely outside the reading. Each expansion of the apparatus redraws the boundary between the measurable and the unmeasurable; the place of judgment is at that boundary.

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§5 Three Scenes: What a Metric Records Depends on What It Is Asked to Answer

The three fields differ in the source of their responsibilities—research norms, contract and fiduciary relations, platform service commitments; what is compared below is how these are verified, not a reduction of all the sources to promising. A promise needs evidence of performance, so counting, recording, and comparing are not harmful in themselves. If an agreement explicitly requires delivery by a certain time, the time of delivery is relevant evidence; if a service undertakes a checkable operation, the operation log can help establish whether it was performed. Here the metric makes an obligation that was vague easier to verify. Problems arise when the metric is asked to answer what lies beyond what it records. The comparison of the three scenes displays one and the same limit of inference: a record of an expression's effect or of an action's outcome cannot, without further explanation, become proof that all the promises have been kept.

§5.1 Academia: From "The Conclusion Is Reliable" to the Verifiability of Research Responsibility

A researcher cannot guarantee in advance that every hypothesis will hold, but he can take responsibility for the presentation of materials, the statement of methods, and the correction of errors; the number of times a paper is cited does not by itself prove that these responsibilities have been discharged. This is the exact form of the promise problem in the academic scene: what the researcher owes the community is not a guarantee that "the conclusion is true" but the verifiability of responsibility—materials can be reexamined, methods can be criticized, errors can be corrected along the record. Citation counts record diffusion; they cannot settle these responsibilities in a single account. The acceleration of text formation—including the participation of AI in drafting—does not alter this structure either: a manuscript written faster does not mean that observation, inference, and correction have been completed.

§5.2 Finance: Prediction, Contract, and Fiduciary Duty Are Not One Report Card

Investment forecasts, the payment or service obligations of a contract, and the duties of conduct in a fiduciary relation are different objects of evaluation, yet they are often measured under one and the same performance report: the performance of a given period cannot by itself answer whether all agreed obligations have been met; historical returns are a statistic of the past and cannot guarantee the future; the correct computation of a model cannot by itself prove that the product suits the customer. Reducing tracking error can be a management task; paying benefits on time is another task; completing the former does not mean the latter has also been completed—these distinctions do not map one-to-one onto Knight's risk–uncertainty distinction: even where market risk can be measured accurately, disclosure, conflicts of interest, and customer suitability must still be handled separately.

§5.3 The Discrete Leviathan: Promise, Evaluation, and the Power of Interpretation Enter the Same Infrastructure

The Discrete Leviathan—the cross-layer network of key nodes defined in Chapter 25: different organizations, through technological dependency, property rights, and contracts, organize access, the presentation of information, and the feedback of results, while dependents can hardly escape these arrangements merely by switching a single service—pushes the problem of the promise down to the level of wiring. That a viewer watched a piece of content to its end shows that viewing lasted until the end; whether it added knowledge, corrected a misunderstanding, or improved judgment still requires evidence bearing on the corresponding ends. What is

distinctive about the platform is not that it uses metrics but how it is wired: in an integrated platform, advertising expression, terms of service, content distribution, rating records, and dispute handling can all be controlled by the same operator; the question is whether this concentration lets it at once define success, control the evidence, and monopolize the interpretation of results. Johnson in §1.2 already distinguished gaining attention from deserving trust; the platform's arrangements allow this distinction to be crossed systematically. The economic condition of the crossing Lanham supplies within the framework of the attention economy: the devices that regulate attention are stylistic devices, and when attention stands at the center of the economy, style moves with it from the periphery to the center (Lanham, 2006)—

> The devices that regulate attention are stylistic devices. Attracting attention is what style is all about. If attention is now at the center of the economy rather than stuff, then so is style. It moves from the periphery to the center. Style and substance trade places. (Lanham, 2006)

The premises that Aristotle's hearers supplied for themselves are here supplied in advance by the recommender; the rules of pleasing, which Pascal judged himself unable to attain, here acquire a measurable substitute—the effect reading does not produce the rules of pleasing; it records only its results.

When the promisor holds at once the definition of success, the access to the data, and the interpretation of results, evaluation can gradually turn into certification of the arrangement by itself. Take companionship services: continued use may mean that the user is being helped; it may equally mean that the user has formed a dependence hard to escape. If a service aims at improving life yet takes rising usage time directly as evidence that the aim has been achieved, it has written the relation that needs testing into the method of evaluation in advance.

This problem does not require that all metrics be rigged, nor that all participants intend to deceive. It suffices that institutions organize rewards around an outcome that is easy to obtain, while evidence of performance that is hard to obtain no longer affects decisions—holding up the visible result can then gradually replace explaining the actual consequences. The decisive change is who still has the capacity to propose another interpretation, and whether that interpretation can alter the existing arrangement.

Against this, if the scope of evaluation is clear, the materials can be checked by others, and results inconsistent with the original purpose can trigger correction, then metrics can also sustain judgment. Judgment does not require everyone to redo all the work in person; it requires that after delegation there remain a way to tell whether the delegated work holds. Its opposite is not the division of labor as such, but the disappearance of the possibility of questioning after the division of labor.

These contrasts do not sort the three fields into one degenerative process, nor do they deny the uses of citations, performance records, and viewing logs. They mark a common limit of inference, and they foreshadow the question of §6: when expression, evaluation, and execution are increasingly performed by AI, who is doing the promising, and who is doing the bearing?

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§6 After AI Enters: Who Is Promising, and Who Is Bearing?

§6.1 The Three-Party Arrangement in Companionship

AI companionship brings the problem of the promise into conversation and commercial arrangement at once. Muldoon and Parke (2025) examine, from a political economy and cultural studies perspective, companion

products marketed specifically for friendship, romance, and general well-being. They explicitly distinguish this object of study from general-purpose language models, and they acknowledge that companion products may provide certain low-cost, accessible forms of emotional support, while the risks do not act on every user in the same way.

The two authors analyze one conflict of interests in particular: users seek relief from loneliness while maintaining their autonomy, whereas developers are structurally motivated by the imperative to maximize engagement and monetize interactions. When deeper attachment stands in the way of the user's improving his life, the product's commercial success and the help it claims to provide can come apart. The authors call this relation cruel companionship; it is a theoretical diagnosis of particular product arrangements, not an incidence finding that all use of AI produces the same outcome (Muldoon and Parke, 2025).

Within this analysis, what the user faces is not merely a conversational character. The user gives time and forms attachment; the character supplies responses; the developer controls the character's presentation, the conditions of the service, and the business arrangement. The character appears continuous in conversation, but the conditions that maintain this continuity lie in another party's hands. The user's expectations of the relation may therefore not equal the service obligations the developer is willing to bear over time.

The promise problem this chapter extracts from it is this: are the expressions on the strength of which a person arranges life, and the actor who can answer for those expressions, clearly connected? That a user feels understood does not by itself prove that the connection has been established; that the developer can modify the product does not by itself prove that the modification bears no responsibility toward the existing dependence.

§6.2 A Conversational Persona Cannot Replace the Responsible Subject

For the purposes of this chapter, call this situation a "subjectless promise": a conversational character can make first-person commitments while no bearer of the obligation can be identified from the conversation alone. The phrase tends to merge different questions. The first person of a conversation, a human being with a continuous life and mutual obligations, and a natural person or organization legally capable of bearing responsibility do not belong to the same level. That a character can generate promissory language does not establish that it possesses the same capacity to promise as a human being; that it lacks that capacity does not entail that the people and organizations providing services around it are free of responsibility.

This book has already given its answer to whether machines can have inner experience: AI is an apparatus of mapping and generation, not a subject with inner experience and intention; the promissory utterances of a conversational character are the output of an apparatus, not the commitments of any subject. One therefore need not look inside the machine for a bearer of obligations—as soon as it can be established who designed the forms of expression, who set the boundaries of the service, who can change the rules, and who draws profit from the use, concrete questions of responsibility can already be raised. Whether responsibility holds, on what ground, and to what extent, still has to be judged together with authorization, harm, causation, and the applicable institutions; these are judgments among human beings—there is no unresolved "general thesis of AI subjecthood" that must be settled first.

Fried's point that the promise is not the only ground of responsibility offers here a conceptual reminder, not a ready-made legal conclusion about AI. Even if an expression does not yet amount to an enforceable promise, it must still be asked whether the operator created misleading impressions, encouraged undue reliance, or left

foreseeable losses to others. Conversely, that a user has formed expectations does not mean the other party must satisfy all of them. The relation of the two sides has to be stated; it cannot be decided by whether promissory words happened to appear.

§6.3 An Agent Can Act on One's Behalf; Authorization Must Still Have Content

The problem of AI agents is not the same as that of companion products. Companionship concerns sustained response and attachment; an agent is arranged to complete choices and actions on the user's behalf. To recognize its structure, consider a shopping agent: the user allows it to compare goods within a budget and a purpose and to complete purchases. What is discussed here is the situation of authorization, not the prevalence of some protocol or the capability of some product.

In this situation, the agent can lighten the burden of item-by-item searching and may reduce oversights. That the user did not personally inspect every item does not automatically mean judgment has disappeared. The earlier judgments of purpose, budget, risk, and the boundaries of authorization still take part in the action; the checks and dispute handling that follow the action can also constitute new moments of judgment.

But authorization cannot be compressed into one blanket consent. If the purpose has been converted into a parameter convenient for ranking, and the agent displays only the results selected by that parameter, then the user needs to be able to know which requirements entered the selection and which did not. Otherwise the final confirmation may merely be the acceptance of an already-formed set of options, not a grounded choice about the matters originally at stake.

By the same token, completing a transaction automatically cannot by itself settle where responsibility lies. Whether the agent exceeded its authorization, whether the operator changed the conditions of selection, whether the merchant performed its guarantees, and what consequences the user should bear must be judged separately. These distinctions keep the agent's technical capability and the legitimacy of the arrangement connected without conflating them. Actions can be executed by a system; the meaning of the authorization and the allocation of its consequences must still be borne by the responsible people and institutions.

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§7 Why Exit Does Not Equal Restoration

§7.1 Consequences Already Occurred and Conditions Still Changeable

After an arrangement of promises has run for some time, exit cannot return participants to the state before they joined. Time already given up, other opportunities forgone, habits formed, and relationships affected may all leave consequences. The §4 distinction between performance and compensation continues to hold here: canceling a service and dealing with the dependence it has produced are different jobs.

But not all of these consequences should simply be labeled irreversible. What has happened cannot be made not to have happened; a skill may decay yet be rebuilt through renewed practice; a person unable to leave alone may be able to leave once support and institutions change. They impose different demands on rebuilding, and they do not support a common conclusion that no future can be changed.

Arendt's pairing of irreversibility with the power of beginning again helps hold this distinction in place. To acknowledge that action leaves consequences is not to accept that existing relations must be maintained; to be

able to begin again is not to have undone the earlier harm. Rebuilding must set out from the conditions actually left behind, not from an image of restoration to the original state (Arendt, 1958).

§7.2 How Dependence Raises the Cost of Changing an Arrangement

The companionship relations discussed by Muldoon and Parke (2025) supply a concrete mechanism: when a product takes part in the user's daily arrangements, emotional regulation, and self-understanding, reducing use is no longer merely the stopping of an operation. The user may have to look for support elsewhere, adapt to a different mode of interaction, and bear the loneliness and uncertainty of the transition. The risk of dependence the authors stress concerns precisely this continuing relation, not whether a single answer was satisfying.

One can then understand why knowing that an arrangement is problematic and being able to change it remain far apart. A person may clearly recognize the commercial incentives yet lack alternative support; the lack may not be judgment at all, but the conditions for turning judgment into action. To attribute continued use to the user's unwillingness to think would miss the exit costs that the arrangement itself has shaped.

The opposite case exists here as well. If a service helps the user restore contact with others, preserves independent activity, and does not penalize reduced use, then continued use need not amount to the loss of the capacity of judgment. What recognition requires is how the service affects the user's subsequent actions, not frequency of use or product category alone.

§7.3 Re-Judgment Needs a Position from Which to Act

Reserving judgment is not the same as throwing responsibility back onto the isolated individual. If participants cannot obtain the records of the original agreement and its changes, cannot ask the grounds of an interpretation, and lack the time or resources to raise a dispute, then a formal right of choice may not suffice to change any outcome. The corresponding institutional arrangements must give judgment an object, materials, and a chance to affect subsequent action.

At the same time, a channel of dissent cannot require only the affected to keep producing evidence while the party able to change the rules offers no account. Whoever proposes a new interpretation of performance should state the reasons and their effects on others; whoever controls the records cannot close a dispute on the ground that the other side cannot produce them. What is proposed here is a normative requirement on the allocation of responsibility, not a report that any existing institutions have generally realized it.

The promisor, too, deserves commensurate protection. A promise may need amendment; demanding boundless performance forever could damage his autonomy as much as it could keep others out of new relations. Rebuilding the position of judgment therefore has to discuss reasonable exit, transition, and responsibility together, not merely add constraints on one side.

This also fixes the relation of this chapter to meta-audit—being dissatisfied with checking whether readings agree, and asking instead whether the rules and the system still correspond to what they are supposed to address. What must be asked is not only whether a given execution completed according to rule, but whether the rule can still account for the original obligation, who is able to change the rule, and whether objections have any chance of altering the result. That a procedure can complete a check does not mean these questions have been answered; but a procedure that keeps reasons, materials, and corrections in continuous operation can itself become a condition under which judgment is sustained.

§8 Conclusion: Keeping Promises Does Not Exempt Interpretation; Re-Judging Does Not Exempt Bearing

The promise brings actions not yet performed into the present, making cooperation possible beyond immediate exchange. It has its force through constraint, yet it cannot by itself determine its own legitimacy in all the situations that follow. Keeping promises does not exempt interpretation, and re-judging does not exempt bearing. The difficulty between the two always involves others: who has already acted on it, who can state the reasons for change, who may raise the challenge, and who bears the consequences.

The Eastern and Western threads do not yield a single-line history of the exit of judgment; they yield different formulations of the same lesson. "Tan Gong II" says that as the apparatuses were stacked, the people began to rebel and to distrust; Hume says that the obligation of promises changes form as interest requires; Hobbes says that covenants without the sword are but words—each generation of apparatuses needs its own hardware, and each, in the stacking, exposes how its efficacy depends on conditions outside the apparatus. Mencius and Fried–Atiyah hold the same boundary from two directions: one may not be spared explanation merely because one once agreed, nor spared bearing merely because one now regrets. The apparatus can take over execution; the reservation of judgment cannot be outsourced—when its position is emptied, the cost tends to surface in the failure of the next generation of apparatuses. The main history of persuasion supplies the corresponding face: Aristotle's concession still left to the hearer the work of supplying premises; Han Fei's art of reading still had to guess at the ruler's heart; Zhang Yi's fraudulent promise still had to pay a price in reputation. When recommendation and generation take over both the premises and the human heart, the persuaded party's participation is compressed to confirmation, and the persuader usually no longer needs to pledge his own credit behind his words. Persuasion and the promise converge in the metric age, and here they part again—however far expression is optimized, the weight of fulfillment can be caught only by an actor capable of bearing obligations. Shang Yang's moved pole and Zhang Yi's six li here close the two lines of this chapter: the one did pay out fifty *yi* yet confiscated the qualification to discuss the decrees; the other did once win submission yet welched on six hundred li—credible apparatus and hollowed-out accountability have never been the same thing.

Metrics and AI give these problems new concrete form. Expression can be optimized repeatedly; a service can keep responding in the manner of a person; actions can be executed by agents. But gaining attention, sustaining use, and completing procedures each supply evidence only within a certain range. Whether they have redeemed the assurances on the strength of which people arranged their lives still has to be checked against actual obligations and actual consequences. If the same party both makes the assurance and monopolizes the interpretation of what counts as fulfillment, the running of the apparatus may come to be used to prove the apparatus itself.

This connects with the difficulty of the Clock Room: that readings agree ever more closely with one another does not by itself prove that they are aligned with the matters they are meant to identify. In relations of promise, clear records, rising scores, and prompt execution may all be useful, but they do not permit one to skip the separate judgments of performance, legitimacy, and loss. Measurable readings handle measurable risk, while common life always has a part that falls outside the boundary of grouping—that part still has to be borne by beings capable of making promises, while those who depend on promises keep the conditions for understanding,

challenging, and acting anew.

Part IV has moved from the counting of academic publication to the readings of financial models to the distribution rights of platforms; this chapter returns the set of materials to their common origin—the promise of one human being to another. What the chapters of the volume each established converge here: publication does not mean that knowledge has increased; adoption does not mean that outputs are correct; participation does not equal consent; execution does not equal responsibility. Acknowledging the necessity of apparatuses and abandoning the reservation of judgment are two different things. The past cannot be undone, but how life is to be shared hereafter still has to be judged continuously by the people who live within these conditions.

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